

THE
JOURNAL
OF
PRISON DISCIPLINE
AND
Philanthropy.

PUBLISHED QUARTERLY
UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR ALLE-
VIATING THE MISERIES OF PUBLIC PRISONS," INSTITUTED 1787.

JANUARY, 1860.

PHILADELPHIA:
E. C. & J. BIDDLE & CO.
1860.

VOL. XV.

TERMS:—ONE DOLLAR A YEAR IN ADVANCE.

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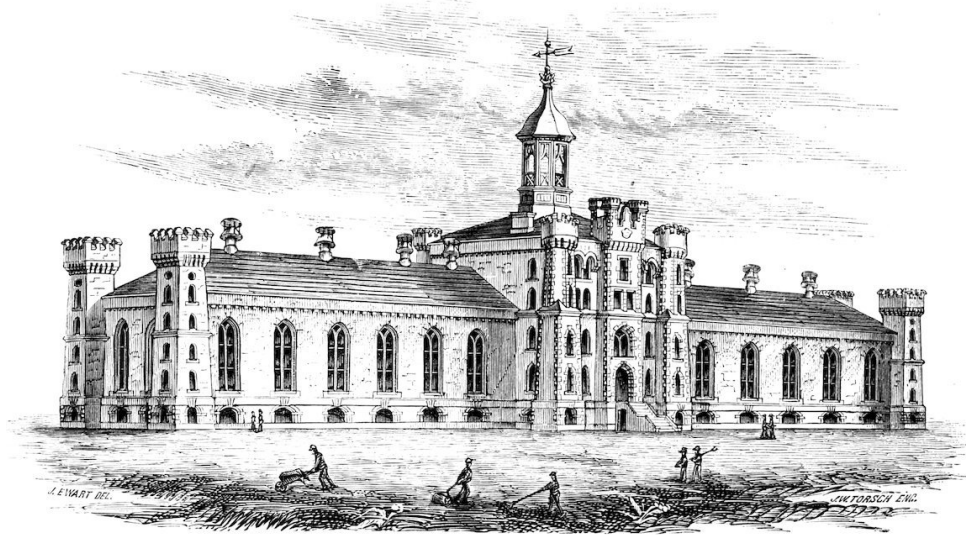
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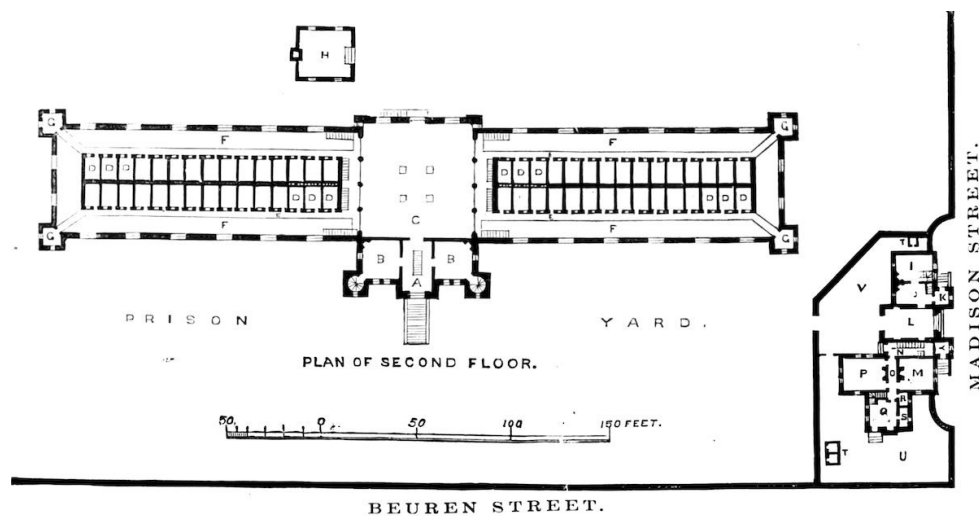
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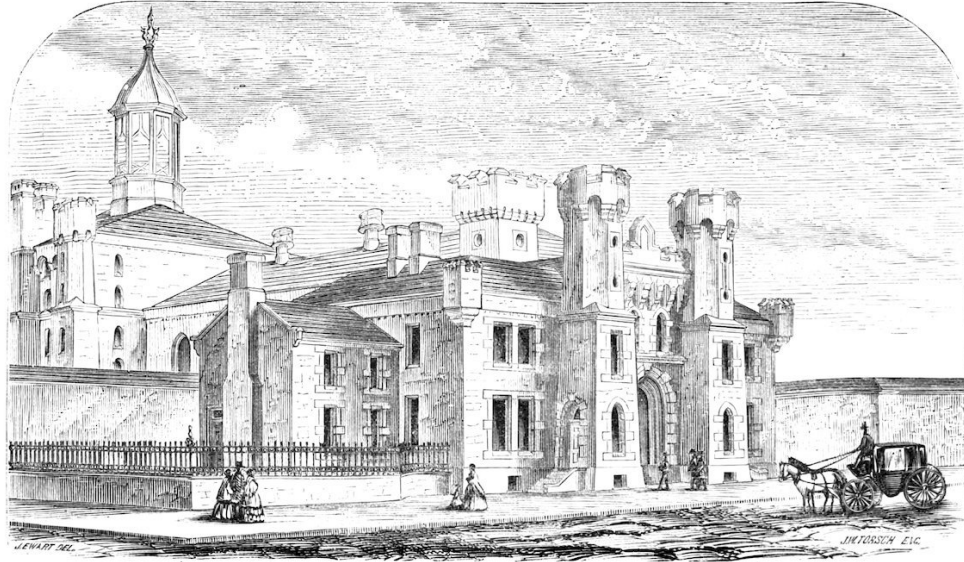


NEW JAIL FOR THE CITY OF BALTIMORE, MD.
THOS. & JAS. M. DIXON, ARCH'TS.



REFERENCE:

A, vestibule; B, rooms for the warden and his deputies; C, guard room; D, cells; E, galleries; F, corridors; G, sink rooms; H, boiler house; I, clerk's office; J, gate keeper's room; K, clerk's vestibule; L, entrance gateway; M, parlor; N, hall; O, passage; P, dining room; Q, kitchen; R, store room; S, pantry; T, privies; U, kitchen yard; V, office yard; Y, vestibule to warden's residence.



NEW JAIL FOR THE CITY OF BALTIMORE.—VIEW OF WARDEN'S RESIDENCE, LODGE,
AND ENTRANCE GATEWAY.

Thos. & Jas. M. Dixon, Arch'ts

JOURNAL

OF

PRISON DISCIPLINE.

VOL. XV.—JANUARY, 1860.—No. 1.

**ART. I.—NEW GAOL FOR THE CITY OF
BALTIMORE.**

We hear with unfeigned pleasure of any improvement in the construction of city and county gaols. Convinced as we have been for many years, and by testimony from innumerable sources, that in most of them we shall find a fruitful soil for the production and growth of criminal purposes and habits, we can conceive of few objects of municipal oversight which demand earlier or closer attention. What the gaol does to make a bad man worse, the penitentiary cannot easily undo. If a thief or burglar or counterfeiter, while waiting for trial or sentence, serves a few weeks' or months' apprenticeship to one or more adepts in those branches in a gaol, he is a very unpromising

subject of penitentiary discipline. He is, perhaps, rather braced against any influences which may be employed to change his course of life, and buoyed up with the anticipation of pursuing his criminal projects under more favorable circumstances, and with greater skill and success, upon the termination of his sentence.

So deep are our convictions of the immeasurable evils inflicted on the community by bad gaols, that we accept an attempt to improve them, in any respect, as a token of good. If a cell that was dirty yesterday is clean to-day—if the sexes are separated—if, instead of allowing prisoners to herd together day and night, they are separated by night—if for darkness, dampness and a pestilential atmosphere, the light and air have free access—if, in a word, there is some decent respect shown to the species represented in these suspected and perhaps fallen, degraded, and certainly discreditable specimens of it—we take courage.

Of course we are prepared to congratulate our fellow-citizens of Baltimore, on the completion of a new and imposing city gaol. And though we could have wished they had adopted the principle of individual separation—which we cannot but regard as indispensable under any system, both as the *duty* of society and as the *right* of the offender—still, a well-constructed, wholesome prison, properly governed, does credit to the wisdom and humanity of the public authorities, and will, in the end, prove altogether the most economical.

The following description of the gaol, illustrated as it is by the accompanying engravings, will give our readers the means of judging for themselves of the design and character of the new edifice:

The jail stands in close proximity to the penitentiary, and comprises a centre building, and north and south wings.

There is a block of cells in each of the two wings, 15 cells in length, 2 in width, and 5 stories in height, making 300 cells in the two wings, for the confinement of prisoners.

These two wings are on what is known as the “Auburn plan,” being a prison within a prison. The cells are surrounded by corridors formed between the block of cells and the exterior walls.

The cells are 8 feet by 11 feet, and about 10 feet high, they are built of bricks, with segment and arched ceilings, and brick floors; each cell has an iron grated door and window opening into the corridors. The corridors are 13 feet wide, and have floors of hard flag stone on a level with the floors of the first story cells, they are open from this floor to the top of the upper story cells.

All of the cells above the first story are reached by galleries and staircases of iron. Each cell has a ventilating flue constructed in the wall, with an opening into the lower part of the flue for the reception of the prisoner’s night pail, to be closed with an iron slide, and another opening near the top

of the cell for ventilation, which is also provided with an iron slide, by which it may be closed. These flues all open into a large ventiduct constructed on the tops of the blocks of cells, the vitiated air is taken from the cells through these flues and airducts, by means of large ejecting ventilators, placed on the roof and connected with the ventiducts.

Light and air is admitted in abundance by the large windows in the exterior walls.

There are five sink rooms in each of the four corner towers, making one sink room for each range of fifteen cells; the iron galleries are continued across the corridors to the sink rooms, and each one is fitted up with an enamelled iron hopper and trap, through which the contents of the night pails are discharged into the soil pipes and sewers; there is also an iron sink with a sufficient supply of water. Each sink room has two windows for light and ventilation.

There is a tank in the upper story of each of the four towers to insure a constant and adequate supply of water.

The guard room in the centre building is 57 feet 6 inches by 59 feet 6 inches, and about 38 feet high, and is separated from the wings by heavy iron screens or gratings, to confine the prisoners to the corridors and galleries of each wing at such times as they may be allowed privileges outside of the cells; these screens are constructed so as not to obstruct the view into the wings from the guard room. The corridors, stairs and galleries of the wings all being in full view from the guard room—the floor of which is on a level with the lower gallery of the wings, and is formed of 144 plates of cast iron, supported on rolled iron beams, so arranged as to form a bearing for all the four sides of each plate, the beams being supported by nine iron columns and the four side walls. The guard room is lighted by three very large windows. The only entrance to either the north or south wing is through the guard room.

The kitchen, in which all the cooking, baking, washing, &c. will be done, is under the guard room and on a level with the first story of cells, and is of the same size as the guard room, and 11 feet high.

The cooking and the heating water for the various purposes is all to be done by steam, and the baking in two brick ovens. The kitchen is lighted by three windows in the east side, two angle windows in the west side, and 4 floor lights, taking the place of four of the iron plates of the guard room floor.

There are two rooms in the front part of the centre building on a level with the kitchen for the reception of prisoners, one on each side of a vestibule through which they are entered—they are fitted up with iron bath tubs, water closets, and a fumigating oven for the purpose of cleansing the filthy before placing them in their cells.

The entrance to these reception rooms is under the landing of the steps to the upper vestibule, and there is an iron staircase from the lower to the upper vestibule, by which the prisoners are taken from the reception rooms or lower entrance to the guard room and cells.

The two rooms in the front part of the centre building, on a level with the guard room, are for the use of the warden and his deputies.

There are six rooms in the front part of the centre building for the confinement of witnesses, or for privilege rooms, four of which are about 20 feet square, and the other two about 15 feet square; these rooms have private water closets, and are supplied with water, they have high ceilings, are well ventilated, light, pleasant, and cheerful; they are approached by private staircases in the two towers of the front part of the centre building, and are connected with the galleries of the north and south wings by a gallery on the west side of the guard room.

There are three hospital rooms in the upper story of the front part of the centre building, they have private water closets, bath tubs, with warm and cold water, and shower, they can be reached from the cells of the north and south wings by the gallery through the guard room and iron staircases, and also from the stairs in the front towers; they are well lighted and ventilated.

There is a water tank in the upper part of the centre building to supply the kitchen, water closets, baths, wash basins, &c.

The chapel is in the upper part of the centre building over the guard room. It will seat over 400 persons. There is an entrance to it from each of the wings, and also from the front part of the centre building. It is about 22 feet high, well lighted and ventilated, and so planned that the prisoners can be separated into classes if deemed desirable. The chapel floor is supported by two double lattice wrought iron girders.

There are ventilating flues and ejecting ventilators constructed in all parts of the centre building, and all of the windows and other openings throughout, are made secure by wrought iron gratings. All the floors are on iron beams and brick arches. The building is thoroughly fire proof in all parts except the chapel and roof framing, and is warmed by steam from two large boilers located in the boiler house on the east side of the jail, and lighted at night by gas. There is a thorough system of drainage from all of the waste pipes, soil pipes, and rain water pipes, through brick drains and sewers to Jones' Falls, a stream running within about 200 feet of the jail.

The entrance gateway and lodge, the clerk's office and the residence for the warden, are on the south side of the jail lot, fronting on Madison street. There are two chambers over the lodge and office on the east side of the gateway. In the Warden's residence, on the west side of the gateway, there is a kitchen, dining room, parlor, five chambers, and bath room, with hall passages, pantry, store rooms and closets, and all other requisite appurtenances and conveniences for the comfortable accommodation of a family. The yard for the warden's residence is separated from the jail yard by a stone wall and iron gate.

The prisoners are received and discharged through the gates on Madison street.

The exterior walls of the jail and other buildings are all of stone, together with all the corbels, copings, quoins, chimney tops, &c. The base, up to the second range of window sills, is of granite, cut and set in large blocks. The walls above the base are of light blue stone, laid in rubbed masonry, with splayed jambs and arches. The window sills above the basement, and the quoins, corbels, copings and other dressings are of marble. The roofs are of slate. The interior walls, arches, &c., are all of brick.

The site is a good one, being easy of access from all parts of the city, and convenient to the court house and penitentiary. There is ample space on all sides for a free circulation of air. The lot has a gentle ascent to the north and east, and a dry self-draining gravel sub-soil. Its proximity to Jones' Falls, and its elevation above the water level, affords the best means of drainage.

In designing this prison and working out the various details of the plan, we endeavored to carry out the following general principles, viz:

1. Confinement of prisoners in separate cells, so far as deemed desirable.
2. Separation into classes.
3. The cells so arranged that their doors and windows may have open gratings, and yet so as that a prisoner cannot from his cell see into any other cells or into any other part of the building except the corridor opposite his own cell.
4. The corridors so arranged and located that prisoners can, with convenience and safety, be allowed privileges in them.
5. Pleasant and convenient yet perfectly secure rooms, for the confinement of witnesses, entirely separate from the other parts of the prison.
6. No apartment for the confinement of a prisoner to be below the surface of the ground.
7. An unobstructed view of the corridors, galleries and stairs from the guard room.
8. Central location for the kitchen, the chapel and all other offices.
9. Convenient means of ingress and egress.

10. Such an arrangement of plan as would secure the greatest benefit of sunshine on the exterior walls and into the corridors and rooms, and admit of the free movements of the currents of air around and throughout the building.

11. An abundant supply of water, properly distributed throughout all parts of the prison, and a suitable number of bath tubs, water closets, hoppers and sinks to promote cleanliness among the prisoners and in the prison.

12. The sink rooms so located and arranged as to prevent their contaminating the atmosphere of the prison.

13. Effectual means for warming, and a thorough system of ventilation, and means for admitting an abundant supply of fresh air and light to all parts of the building.

14. All parts of the building in which the prisoners are to be confined to be thoroughly fire proof, and to be so secure as to preclude all hope of escape therefrom.

15. Hospital rooms to be conveniently located in a quiet part of the building.

16. The residence for the Warden's family not to be in the jail, but on the jail lot, and very convenient to the entrance to the jail.

17. Simplicity and economy, in plan and construction, so far as consistent with the other essential requirements.

And finally to provide, by every possible means consistent with security, a proper degree of economy and a salutary discipline for the healthfulness, comfort and convenience of the prisoners; for while a prison is a place of confinement for criminals or persons charged with crime, and as such should be made so secure as to shut out all reasonable hope of escape, that the proper ends of justice may be met, yet humanity and indeed justice herself demands that the life and health of the prisoners shall be carefully protected, and every suitable means afforded them for repentance and moral improvement.

The architectural style of the building is castellated Gothic, and presents in the durable stone of which the building is erected those simple, yet bold, strong and massive features which convey the idea of fitness—that basis of all proportion—which affords to us an emotion of pleasure, or that feeling of satisfaction arising from the contemplation of means properly adapted to their end, and possessing those qualities of order and harmony which excite our admiration. Any attempt at mere architectural display, by elaborate ornamentation or expensive finish, would have been the work of supererogation. Propriety and fitness forbid the use of elaborate embellishment. Strength and security should be the most prominent features in the design for a prison, that it may by its austere beauty wear a suitable expression, and thus proclaim with truthfulness the purpose for which it is designed.

The total cost of gaol, warden's residence, heating, cooking, &c., is not far from \$290,000.

ART. II.—TEXAS PENITENTIARY.

In March, 1848, the Legislature of Texas, in pursuance of a provision in the State Constitution, passed an act authorizing the Governor to appoint three Commissioners to select a location, and report the details, for the erection of a Penitentiary; the action of the Commissioners to be subject to the approval of the Governor. After careful and full consideration of the comparative advantages of the several sites offered, the town of Huntsville, the county seat of Walker county, was selected, and the selection approved.

Walker county lies just under the thirty-first degree of north latitude, and between the eighteenth and nineteenth degrees of longitude west from Washington; and the Trinity river forms its north-eastern boundary. Huntsville is very nearly the geographical centre of the county, and is about one hundred and twenty miles a little west of north from Galveston; and about one hundred and sixty miles north of west from Austin, the capital of the State. The town stands upon a low gravelly ridge, bare of trees, and with deep ravines upon three sides. Some few scattered houses, as well as Austin College and the Andrew Female College, are built upon corresponding ridges, which rise on the opposite sides of these ravines. There is no extended growth of heavy timber in the immediate vicinity of the town. The approach from the east for some five or six miles, is through a sandy region covered with a dense growth of scrub oak and underbrush. Upon the west and south the country is more open, gradually merging into the rolling prairies of Grimes and Washington counties. Small streams run through the ravines and find their way into the lesser branches of the Trinity and San Jacinto rivers; but the supply of water is irregular and the ravines are often dry. The situation is a healthy one, the air pure and bracing, and the climate favorable. The town is regularly incorporated, and has from sixteen hundred to seventeen hundred inhabitants.

Upon the eastern outskirt of the town, on both sides of the main road from the lower Red River country, are the buildings and grounds of the Penitentiary. The main buildings and enclosure are upon the southern side of the road, and extend back down the slope of the ravine, with a gradual and slight descent. Upon the opposite side of the road are the storehouse and warehouse: the storehouse, which includes under the same roof the offices and residence of the Financial Agent, is sixty feet front by fifty deep, and two stories high; the warehouse is about forty feet front by fifty deep, and two stories high. The two buildings are separated from each other by an open space of some two hundred feet front; the intervening ground, together with a considerable lot in the rear extending back of the storehouse and warehouse, is mostly under cultivation as a vegetable garden for the convicts. The warehouse is used for storing the wool and cotton for the factory. In the storehouse are kept the manufactured goods for sale. The front of the Penitentiary faces north, and extends a distance of some three hundred feet directly upon the road without any intervening fence or wall. The storehouse and warehouse are immediately opposite the respective extremities of the front, the main entrance of the Penitentiary in the centre, facing the open space above mentioned. The front elevation consists of a centre building some sixty feet front and three stories high, with two wings, each one hundred and twenty feet long and two stories high. The entire front presents one uniform extent of brick wall upon the same line for the whole distance, unbroken by any recesses or openings except the large, but plain, arched gateway in the centre and the rows of windows; and unrelieved by a single projection or attempt at ornamental or architectural display. The only thing to relieve the monotonous uniformity of the front is the additional story upon the centre building. The bricks of which all the Penitentiary buildings are built are made in the neighborhood, and are coarse and of a dingy red color.

At the main entrance, the large, solid, double leafed door, which mostly stands wide open in the day time, is stationed a guard, armed with a six-shooter in his belt, and a double-barreled shot-gun, loaded with buck-shot and ready capped, in his hands. An admission fee of twenty-five cents is charged for each visitor, and the amount received goes into the general accounts of the prison, and very nearly defrays the expense of the extra guard who is kept for the express purpose of waiting on visitors through the establishment. Any one, however, who has a higher motive than mere

curiosity, and desires to examine the condition and management of the Penitentiary through an interest in the subject of prisons and prison discipline, and will make himself known to the Superintendent, will always be courteously received and every facility afforded for his inquiries and observations without charge. Passing through the archway, the visitor is admitted by the guard through the large grated iron gate which closes its inner end, into the yard of the prison. In the middle of the yard is a two story log-house, used now as the shoemaker's shop, but built originally as a place of confinement for the convicts who were employed in the erection of the Penitentiary. The entire space enclosed within the limits of the prison walls is about three hundred feet square: the enclosure upon the northern side is formed by the front or main building; the southern side of the enclosure and the portions of the eastern and western sides adjacent thereto, are shut in by substantial brick walls; while the rest of the eastern and western sides is formed by ranges of buildings connected with the main edifice. Just within the prison wall upon the southern side of the yard is the factory, a substantial building of brick, two stories high and two hundred and seventy feet long by fifty deep. Both cotton and woolen goods, chiefly of the coarser kind in demand for plantation wear, are manufactured. The establishment of the factory was authorized by the Legislature at the session of 1853 and 1854, and an appropriation made for the erection of the building, and the purchase of the necessary machinery. Carding and spinning were commenced in June, 1856, and the first loom started late in July of the same year. Steam power is used to drive the machinery, and the factory has been kept steadily in operation from the time of its commencement, the number of looms having been gradually increased as the success of the undertaking developed itself. The machinery was all made in Massachusetts.

The results of the employment of convict labor in this department of manufactures, is regarded by the Directors and officers of the Penitentiary, as a decided pecuniary success; and the Osnaburgs and woolens made here bear a high reputation throughout the State, and are undoubtedly of most excellent quality and finish.

The centre building of the front is about forty feet deep, and is occupied for the offices and residence of the Superintendent and other prison officers, except the Financial Agent. The lower story is curtailed in room by the archway passing through its entire depth, and affording access for vehicles

as well as persons to the prison yard. The wings are occupied entirely for cells: these are built in three tiers one above the other from the floor (which is but slightly raised from the level of the ground) to the roof. The tiers of cells are entirely separated from the exterior walls of the building by corridors about six feet wide, which are open from the floor to the roof of the buildings; access to the cells in the second and third tiers being had from narrow galleries reached by stairways, one at the end of each wing nearest the centre building. One of the buildings upon the western side of the square is also occupied for cells arranged in similar tiers. Each cell is eight feet long by five wide, and eight feet high. The door of each is a grating of cross-barred iron, and affords the only means of ventilation and the only access for light; and as the doors are but five feet high, with the bottom edge on a level with the floor, the ventilation is necessarily imperfect. All the air is introduced from the corridors, and the windows of the corridors which open to the outer air, are small in size and not very numerous. The corridors, however, are sufficiently lighted for all ordinary purposes, except perhaps on very dark days. The interior of the cells and the walls of the corridors are kept thoroughly whitewashed. There are no water closets in the cells, but each is furnished with a movable vessel. In addition to the cot with its bedding, each cell is provided with a small table and stool, and a few have some one or two other small articles of furniture. There is no uniformity of neatness or cleanliness in the cells, the care of each being entrusted to its occupant; and beyond a certain, not very high standard, no special attention to these matters is enforced.

The buildings upon the eastern and western sides of the prison yard, afford accommodations for the cook-house or kitchen, blacksmith and wagon shops, in addition to a range of cells. The meals are all served to the prisoners in the cells—breakfast before they leave in the morning, and supper after their return at night. For dinner they are mustered from their work at the ringing of the bell at noon, marched back to their cells, and after dinner conducted again to their work. The provisions are of good quality and well cooked. The rations per day of each convict are, a pound and a half of beef, or three quarters of a pound of mess pork or bacon, and a pound and a half of corn-meal. Sometimes mutton is furnished in place of the beef, and the fresh meat is given on alternate days. To each hundred rations there are allowed six pounds of sugar, five pounds of coffee, fourteen pounds of flour, three pounds of soap, sufficient salt, vinegar and pepper for

seasoning, three gallons of molasses, eight quarts of beans or peas, and vegetables whenever they can be procured. *Each convict who chews tobacco has one half plug per week furnished him.*

The floors and ceilings of the cells and the roofs of the prison buildings are of wood, and a few years since the prisoners occupying three cells one over the other, made their escape by cutting through the floors and roof, and so getting down upon the outside. Since that occurrence the prisoners have been searched regularly twice a-day—once when they return to their cells for dinner, and again at supper time.

There were one hundred and eighty-two convicts in the Penitentiary at the time of our first visit, and two others were brought in on the day of our second visit. One cannot but be struck with the number of Mexicans, easily distinguishable by their dark complexions; long, straight, jet-black hair, and piercing black eyes. A very large proportion of the convicts are imprisoned for horse stealing, the most common form of larceny in this State; and which is very severely punished, the sentences ranging as high as fifteen years. There were no negroes in the prison. But very few free negroes are met with in the State; and for the higher classes of offences for which a white man or free negro would be sent to the Penitentiary, a slave is hung. The outer clothing of the convicts consists of a round jacket and pantaloons of the goods manufactured in the Penitentiary, cotton in summer and woolen in winter, with black wool hats. The jacket and pantaloons are each one-half dark and the other half light colored—the dark half of the jacket and the light half of the pantaloons being on the same side of the body, and *vice versa*. Osnaburg shirts, brogans, and wool socks complete the dress, each article of which bears a number corresponding with the cell occupied by the wearer; the numbers upon the articles of outer clothing being large and conspicuous.

All convicts who can read are furnished with a copy of the Bible, the Mexicans with Bibles in the Spanish language. They are also permitted to read such other religious or moral works as the Chaplain may approve. They can have but little opportunity for reading except on Sundays, when they are confined in their cells all day, with the exception of the time of public worship. The Chaplain preaches regularly on the Sabbath twice a-day. There is no chapel or hall provided for assembling the convicts. The convicts are marched out of their cells, each bringing his stool with him,

and ranged along the opposite sides of one of the long narrow corridors, in no very strict or regular order. The Chaplain stands about the middle of the corridor, while at each end are the guards fully armed; the Superintendent is also present.

By a special enactment of the Legislature, the front of the cell of any prisoner sentenced to solitary confinement for life, is painted black, and his name and sentence distinctly marked thereon. The object would seem to be to infuse a salutary dread into the minds of the other prisoners. Upon the only black-painted cell in the prison was the following inscription, in distinct white letters: *William Brown, aged twenty-four years, convicted for murder in Grimes County, spring term, 1858, for which he is now suffering solitary confinement for life.* Brown himself, however, was in fact at work in the factory with the other convicts! He entered the Penitentiary in May, 1859, and had been kept in close confinement in his cell, *without labor*, never being permitted to leave it for any purpose, until about the first of October, when his health was found to have suffered so much that, to preserve his life, he was, under a discretionary power vested in the Directors, released from the rigor of his sentence, and subjected to only the ordinary confinement of the prison. His health had since greatly improved. It is not to be wondered at that his health should decline under the strict enforcement of such a sentence. The cell in which he was confined was the same as to size, ventilation, and light as the rest; and being one of the lower tier of cells, the top of the doorway was some feet below the lower edge of the windows upon the opposite side of the corridor in the outside wall. He had even less chance for fresh air than if his cell had been in almost any other location. It is the sight and knowledge of such instances of solitary *unemployed* confinement as this, and a wilful neglect or refusal to inform themselves upon, and recognize, the very wide distinction between the terms *separate* and *solitary*, that renders many persons so violently prejudiced against, and opposed to the "Separate System."

There were but three female convicts. One was undergoing a sentence for arson, and the other two had been convicted of murder. One of these latter occupied a cell immediately under one in which her husband was suffering imprisonment, as an accomplice of his wife in the crime for which she was sentenced. She had murdered her father, to get his money. The husband of the other woman had died, in prison, but a few weeks previous to our visit.

He, too, had been convicted as an accomplice of his wife; the victim of their crime being a niece of the wife, who had excited her jealousy.

Each prisoner occupies his own separate cell at night and during meal-times. Among the prisoners was a boy of seventeen, who had been sent there for want of any better place for him: his offence was stabbing. In consequence of his youth, he was not subjected to the same strictness of discipline as the other convicts, and was allowed many privileges, occasionally even being allowed to sleep in the same cell with another convict. His opportunities of intercourse with the others must have been frequent, and the association will, in all probability, prove most disastrous in its consequences. His return to the Penitentiary, in the course of a few years at most, can be calculated on with reasonable certainty. Whatever disposition he may show, or whatever efforts he may make, upon his release, to lead a proper life,—all will be neutralized, almost inevitably, by the knowledge of the fact that he has been a convict in the penitentiary; and some of those who have been his fellow-convicts, of a more hardened experience in crime, will be constantly on the watch to lead him astray, and with an influence of great power.

The grades of punishment for refractory convicts are: 1st. Confinement in the dark cell. 2d. Confinement on bread and water. 3d. Confinement, and deprivation of tobacco. 4th. Irons, with or without confinement. 5th. Standing in the stocks. Flogging is also permitted, but only by special order of the Directors, to whom the Superintendent reports any case he may think deserving of that punishment, and the Directors decide on the expediency of the infliction. It cannot, however, in any case, exceed one hundred lashes, and is administered with a leather strap.

In case any of the prisoners escape, one of the guards has some two or three hounds trained to catch runaways, and used to track the fugitives. As some of the prisoners are employed outside the prison yard, about the storehouse and warehouse, and in the garden, the opportunity thus presented, for attempting an escape, is sometimes improved; and the dogs are then brought into use. Escape, however, is a matter of difficulty; and the attempt, even, is hazardous: for, in addition to the armed guard at the main entrance, the immediate vicinity of the prison premises is further watched and protected by armed guards, on duty constantly, in guard-houses a little

distance from the walls, outside,—one at each corner, and one opposite the middle of each side, except the front.

Visitors are not allowed to hold any communication with the convicts, either by word or sign; nor are the master-workmen allowed to hold any conversation with them, except in giving necessary information or direction concerning their work. The master-workmen are also forbidden to converse, in the hearing of convicts, with other persons on matters foreign to their work. The convicts are also prohibited from holding any communication among themselves; but the impossibility of preventing this entirely, was manifest, and, indeed, was frankly admitted. The friends and relatives of any convict are permitted to see and converse with him, in the presence of the Superintendent, at his discretion.

The officers of the Penitentiary are,—a Superintendent, Financial Agent, and three Directors; all of whom are appointed by the Governor, for four years. In addition to these, the master-workmen, physician, chaplain, sergeant of the guard, and steward, are considered as officers of the prison, and all hold their appointments from the Directors. The salaries of the Superintendent and Financial Agent are \$1,500 per annum, each; of the Directors, \$250 each; of the Physician, \$500; and of the Chaplain, \$250.

The present Superintendent is Col. J. H. Murray, who has been in office some eighteen months. He is a gentleman of liberal and intelligent views, and feels the responsibilities of his office. To his courtesy and attention we were indebted for the opportunity of obtaining much of the foregoing information. The present Chaplain is a Presbyterian; but ministers of other denominations occasionally supply his place. Any convict who may wish is allowed to see a clergyman of his own particular denomination. The Directors are required to visit the Penitentiary at least twice in each month, and to report to the Legislature biennially.

A few words as to the County Prisons of Texas. The only opportunity which offered for visiting a county jail was at Brenham, Washington County. The jail building stands near the court house, a little off from the public square, in the centre of the town, and is without enclosure of any kind. It is a plain, two story building, about twenty-five feet square, built of a double thickness of hewed logs. A narrow corridor runs around the inside of the lower story, and surrounds the dungeon, which is the only room upon this story, and has walls of a triple thickness of logs. The entrance to the

dungeon is through a heavy iron trap-door in the floor of the second story. The single door of the jail itself opens directly from the street into the corridor. The second story has but two apartments, which occupy its entire extent; and one of these is appropriated for female prisoners, when there are any. There was but one occupant, a man, at the time of our visit. A short time previous, a prisoner had been confined in the dungeon, awaiting his trial on a charge of murder, but had succeeded in making his escape, in which he must have had assistance from the outside. No jailer or other officer lives at the jail, nor is any special watch kept. The only furniture was a rude stool or two, and a few bed-clothes, laid upon the bare floor. There are no windows in the building, and a few narrow, horizontal openings in the log-walls, secured with iron bars, afford the only supplies of light and air; no shutters, sashes, or other means of closing these openings are provided. There is no provision made for warming the prison, and the cold must sometimes be severe, especially during the prevalence of the Northers. The jail is in charge of the Sheriff, and the food of the prisoners depends altogether upon his discretion. It is possible, that in Galveston, and perhaps in one or two other places, the County Prisons may be upon a better plan, but in none of them is the separate system in force. The prisoners, untried as well as convicts, have an almost unrestrained intercourse. From all that we could learn, it is to be feared that the jails of many of the Counties are even less comfortable than the one at Brenham. But very many things combine to render it peculiarly difficult to awaken the public mind of Texas to the necessity and importance of a careful consideration of the subject of Prison Discipline.

ART. III.—CRIMINAL STATISTICS OF ENGLAND AND WALES FOR 1858.

To the statesman and political economist, not less than to the Christian philanthropist, an inquiry into the sources and extent of crime, and the number, condition and previous history of criminals cannot be without interest. Scarcely a day passes in our chief cities, without the occurrence of some startling outrage upon the public peace, or on the person or property of the citizen. Scarcely a newspaper can be taken up, which does not contain a record more or less in detail of acts of violence and fraud. Why are they not prevented? What provokes their perpetration? How are the guilty parties punished, and what is the effect of their punishment on themselves or others?

In the absence (to our shame be it said) of reliable statistics on such subjects in our own country, we are compelled to resort to the elaborate and authentic reports made to the British government. And as the vicious dispositions and passions of men are the same there as here, and the temptations to crime, as well as crimes themselves and the methods of perpetrating them, do not materially differ in the two countries, we find great satisfaction and instruction in the information they furnish.

In our last number we gave an abstract of the criminal statistics of England and Wales for 1857. Since that time we have received the more full and complete returns for 1858. We do not propose to notice the same class of items to which our former article adverted, but to cull a few facts and results of general and universal interest, which were not then ascertained. The following table exhibits a significant class of facts.

CITIES AND TOWNS.	Population.	Criminal Classes, including Prostitutes.	Per Cent. of Population.	Prostitutes separately.	Per Cent. of Population.
1. Metropolis of London and fifteen miles round,	2,545,000	14,294	1 in 178	7,104	1 in 354
2. Pleasure towns, as Bath, Brighton, Ramsgate, &c.	198,000	2,085	1 in 95	839	1 in 236
3. Eight towns depending on agricultural districts,	160,557	2,056	1 in 78	690	1 in 232
4. Ten commercial ports, including Liverpool,	905,820	9,674	1 in 93	5,346	1 in 169
5. Ten cotton and linen manufacturing towns, including Manchester and Stockport,	758,163	4,910	1 in 164	1,429	1 in 530
6. Six woolen and worsted manufacturing towns,	380,860	2,168	1 in 175	490	1 in 777
7. Small and mixed textile manufacturing towns,	263,984	2,329	1 in 113	611	1 in 432
8. Three hardware manufacturing towns, including Birmingham and Sheffield,	418,130	8,720	1 in 47	860	1 in 486

The reader cannot fail to be impressed by the singular disproportion in the number belonging to the criminal ranks, observed on comparing these different groups of towns, classed according to the predominant occupation

or business of the inhabitants. There is no doubt that the incentives to a lawless life are much more numerous and powerful at certain times and places than at others. It would be easy to indicate probable causes for such discrepancies, and to trace their connection with particular phases of crime, but that is not relevant to our present purpose.

From the tabular view, it would seem that the criminal class is highest in the great seats of hardware manufacture; next in towns in rural districts; then in commercial ports; next in pleasure towns; then in towns employed in small textile manufactures; then in cotton manufacturing towns; next in woolen manufacturing towns; and last in the metropolis. But in the number of prostitutes the order is materially changed, the largest proportion being in the commercial ports, and the smallest in the woolen and worsted manufacturing towns,—the metropolis being considerably below the average.

There is a remarkable variation both in the general criminal classes, and in the specific crime of prostitution in different agricultural districts.

In the eastern agriculturing district the criminal per centage is	1 in 113	Prostitutes	1 in 1122
	—		
In the south and south-western			1 in
	1 in 104	„	1829
In the midland district			1 in
	1 in 103	„	1307

The present returns show that only the very small proportion of about one-fifth of the known criminal classes are in prison at any one time.

Of the parties proceeded against by indictment, nearly one-fourth were of “previous good character;” and of those proceeded against summarily, full one-half were of “previous good character,” and of both classes fourteen per cent. of both sexes were under sixteen!

Considering that until very recently, at least 4000 of the worst criminals were annually removed from the country by transportation, and that though a much more efficient police system has been in force, yet the number of commitments has not been sensibly increased, the inference is drawn that a better system of prevention prevails, and that better prison management has led to the absorption of a large number of discharged prisoners in honest employments.

There are in the country—

Houses for receiving stolen goods	3,122	
Houses to which thieves and prostitutes resort, viz.:		
Public houses	2,402	
Beer shops	2,151	
Coffee shops	386	
Other suspected houses	2,157	7,096
Brothels and houses of ill fame		7,915
Tramps' lodging houses		6,987
Total houses of bad character	25,120	

A curious comparison is given of crimes and arrests. The number of known crimes of a grave character against the person, and all violent offences against property (excluding offences dealt with summarily by magistrates) were 57,868.

	Crimes.	Arrests.
January, February and March	15,785	7,950
April, May and June	12,895	6,982
July, August and September	12,592	6,698
October, November and December	16,596	8,828
Total	57,868	30,458

The greater prevalence of crime in the winter months is accounted for on the ground that employment is more scarce, and the prolonged hours of darkness afford greater opportunities to commit it. It is obvious that the return of crimes committed embraces but an inconsiderable portion of the overt criminal acts in the community. During the period covered by it, there were upwards of 40,000 known thieves and depredators, and 40,000 suspected persons at large. The former living by thieving must thieve to live, and it is “clear that a large amount of petty depredations occur, which, with every allowance for the large summary jurisdiction exercised in cases of theft, is not represented in the return, as well as many continued domestic thefts and frauds which are never detected, or never brought within the cognizance of the police.”

There is an item in the present report which suggests some inquiries that we should be inclined to pursue if we had space and time. The common impression is, that men do not *suddenly* leave the path of honesty and become rogues as it were by a leap. There may be no overt act attracting the notice or exciting the suspicion of the most intimate associates, as a partner in business, a colleague in office, or a fellow workman or clerk; but nevertheless subsequent revelations usually show that the crooked path was entered cautiously, by reluctant and hesitating steps, and some distance trod before there was boldness enough to take the fatal step. We apprehend this impression is warranted,—perhaps it is confirmed, rather than weakened,—by the facts here disclosed. It is undoubtedly true that delinquencies of a positive and unequivocal character are often kept private, and the offending parties, after a brief interval, betake themselves again to evil courses; and when some act of gross turpitude is exposed, it is regarded as the first development of a depraved character, whereas in fact it is only the last of a long series of criminal acts. How far such concealment is justifiable, or to what extent it is the means of saving persons from an abandonment to a criminal life, we are not prepared to say. But cases are not rare in which a desire to save an individual from infamy, and perhaps a circle of friends from mortification, has induced confidence to be reposed where it was undeserved, and so has been the means of much deeper injury to much higher interests. Very few instances occur in which a grave offence is committed, especially against property, by parties who had never before been known to swerve from honesty.

The present report shows, that of 30,458 persons, 5,398 were of previous good character, and 7,886 were known to be of bad character. Out of 404,034 proceeded against summarily, 148,178 were of “previous good character,” and of 130,502 it was not known to be bad.

The Report of Coroner’s inquests for the year gives a total of 19,846, against 20,167 in 1857, and 22,221 in 1856. The diminution is ascribed to the fact that in 1856 the rule was established not to allow the expenses of inquests when it turned out that the death ensued from natural causes, and without any ground to suspect a criminal act or culpable neglect; and it is also alleged, that police officers are not disposed to give notice of cases that might properly fall under the Coroner’s investigation. There is, certainly, a singular uniformity in the operation of the causes that result in death by violence and accident. When we think of the changes in the condition of

society—the fluctuations of business—and the excitements of passion, it seems scarcely credible that so comparatively slight a variation should occur in a succession of years; for example:—

	1858.	1857.	1856.
Murder	183	184	205
Manslaughter	197	187	271
Justifiable Homicide	4	6	6
Suicide, or Self-murder	1,275	1,349	1,314
Accidental Death	8,947	8,930	9,716
Injuries from causes unknown	764	237	424
Found dead	2,611	2,949	3,183

Only 1 difference in the murders of 1857 and 1858, only 10 in manslaughter, and only 17 in accidental deaths; and in suicides, only 35 difference between 1856 and 1857.

It is worthy of remark that, of the 19,846 inquests held, 5,517 were children seven years old or under, and 3,318 were aged or infirm persons over sixty; showing that 44½ per cent. were persons least able to protect themselves from accident or injury. The average cost of each inquest was \$15 dollars.

The total number of convicts in custody during the year was 11,292, of whom 1,326 were women. Of the whole number, 110 died, 3 escaped, and only 36 were pardoned! The daily average, for the year, was 7,859, and the annual cost of each prisoner was \$157.50, or about 42 cents per day. This sum is subject to a reduction to the extent of the value of their labor.

The Reformatory Schools have risen from 1 in 1854, to 47 in 1858; and the number of inmates, from 21 to 700. To these schools, the government allows \$1.75 per week, for each inmate; and the Managers have authority to require a contribution from the parents, when able. From the former source \$127,844 were received, and from parents \$3,738; showing the cost of each inmate, under these items alone, to be \$187 per annum; and the Report has no allusion to their labor as of any value. The average cost in any House of Refuge in the United States, with which we are acquainted, does not much exceed \$100.

There is now an extension of the system of Reformatory Schools, which will doubtless prove of much value. The law authorizes a provisional commitment, to certified industrial schools, of children taken into custody on a charge of vagrancy,—after due inquiry into the condition of their

parents, and of the circumstances of their arrest,—to be detained till fifteen years of age, unless suitable provision is made for their care and employment elsewhere. The present (1859) is the first year of its operation.

It is not easy even to approximate an estimate, in money, of the cost to which crime subjects a community. Sixty years ago, Colquhoun, in his work on the “Police of the Metropolis,” estimated the loss by depredation, in London alone, at ten millions of dollars; and the Watch-Committee of Liverpool, in an elaborate report in 1836, stated the loss in that borough, by depredation, at not less than three million five hundred thousand dollars, declaring that this was not exaggerated, but, on the contrary, much less than the actual amount. We suppose that in such an estimate are included, not only the property abstracted by theft and robbery, but also the fruits of the various species of frauds on the government and on public institutions, fraudulent bankruptcies, losses by incendiary fires, and various kinds of malicious mischief.

To the value of property sacrificed to crime, must be added the expenses of police, prosecutions and prisons, amounting to not less than twelve millions of dollars; and to these we must add a large sum for a proportion of the salaries of judges and justices, and their clerks; the maintenance of court-houses; costs of coroners’ inquests; expenses of sheriffs; costs of prosecution by public bodies, and costs paid by private prosecutors over and above the costs allowed; charges for convicts and colonies, &c.

We have a sound basis for an estimate sufficiently impressive. There is a standing army of one hundred and thirty-five thousand men and women, at war with the community, and living on plunder and vice,—yesterday, engaged in depredations upon property—to-day, rioting in reckless extravagance,—to-morrow, reduced to pinching want. Supposing each of them to spend one hundred and twenty-five dollars a year,—say two and a half dollars a week, we have a sum total of nearly seventeen millions—and this cannot be levied upon the public at less than double that sum. This would amount to but a fraction less than thirty-five millions of dollars, and, with the costs already enumerated, would swell the grand total to very nearly fifty millions, as the annual expense which the criminal classes of England and Wales entail upon the community.

It is to be regretted that we have no reliable data from which to form even a probable estimate of either the number of criminals or the cost of crime in

any one of our States or cities, so far as our information extends. If there were such, even in one State or city, an inference, of more or less value, might be drawn from a comparison of population, police force, &c. We can scarcely suppose that the incentives to crime are much more numerous and powerful here than in England. It is not found that crime abounds most in seasons of depression in business or of reduction of wages or employment, but the contrary; and therefore, the facilities with which people in our country obtain a living may, perhaps, rather promote than prevent crime. That we make much less of all crime here than is made in the older countries, is very obvious; and that escape or impunity is much more common here than there, will not be denied: so that, on the whole, we may reasonably conclude that if the tax imposed on the public, as the direct consequence of crime, could be ascertained, its enormous amount would awaken an interest in the means of preventing or suppressing it, which the considerations of humanity and religion seem inadequate to excite.

ART. IV.—REFORMATION OF FEMALE DISCHARGED CONVICTS.

THE TWENTY-SEVENTH REPORT OF THE COMMITTEE OF THE
BRITISH LADIES' SOCIETY FOR PROMOTING THE
REFORMATION OF FEMALE PRISONERS, 1858.

FOURTH ANNUAL REPORT OF THE BOARD OF MANAGERS OF
THE HOWARD INSTITUTION, 1858.

FOURTEENTH ANNUAL REPORT OF THE WOMEN'S PRISON
ASSOCIATION OF NEW YORK. "THE ISAAC T. HOPPER HOME,"
191 TENTH AVENUE, 1859.

Although the number of female inmates of our Penitentiaries is comparatively small, their reformation is not less an object of interest. Certain it is, that efforts directed to them have been crowned with a remarkable degree of success, in proportion to their numbers. Prison returns show that it is much more rare for a female to return, on a second conviction, than for a male; and though a bad woman may be a much more revolting object than an equally bad man, she must be very radically and thoroughly degraded not to show more susceptibility of kind and good influences than most male prisoners show. Whether it is the world-wide fame of the late Mrs. Elizabeth Fry and the stimulus of her bright example, that has drawn unusual attention to the subject, or whether the wealth and leisure of ladies of rank and distinction, has enabled them to devote more attention and patronage to the reformation and restoration to society, of women who have fallen under the condemnation of penal law, we cannot say. But, certainly, the provision for such unhappy persons is much more

liberal, systematic and extensive in the British Isles, than anything known among us.

We have before us “the twenty-seventh (1858) report of the Committee of the British Ladies’ Society for promoting the reformation of female prisoners.” With the parent institution there are connected ten county associations, besides five in Scotland, and the report embraces notices, more or less extensive, of the transactions of each of them. The central committee is subdivided into sub-committees, to each of which is assigned the care of one of the seven principal prisons of the metropolis in which female convicts are received.

There is a distinct sub-committee, consisting of ten ladies and two secretaries, known as the Patronage Committee. “It sits on every Friday, and its especial duty is to attend to those cases of discharged prisoners from metropolitan gaols which are recommended to its care by the authorities of the prisons, or by ladies who visit there. Endeavors are made to investigate the previous history of each individual; and if there be reason to believe that one is in earnest in the desire to reform, measures are taken to assist her in so doing.

“The rule of the Patronage Committee is, that the prisoner appears before them immediately on her liberation, to comply with which rule she often voluntarily stays back in the prison till Friday. She brings with her, under the charge of a warder, a certificate of health, and the written answers to a list of printed questions.”

Sometimes a little temporary out-door relief meets the necessity of the case, and occasionally an immediate return to her family is deemed advisable; but in the large majority of instances, these poor women are entirely unfit to be restored to society at large without further probation. A refuge is needed to give the opportunity of preparation for entering upon the duties of a changed course of life. “The quiet discipline of those institutions, the word of God there faithfully taught, the encouraging influence of Christian ladies there met with, have mercifully been blessed to the softening of many a hard heart, and to the healing of many a broken spirit.”

When it is believed that the penitence is sincere, and the hope of restoration decided, the individual is sent direct to the “Elizabeth Fry Refuge,” as a preliminary to other more permanent asylums, or to await the

future arrangements that may appear most desirable for her. The funds of the “Elizabeth Fry Refuge” permit fifteen of these patronage cases to be kept in the house free of expense, as on the foundation; all above that number are paid for by the British Ladies’ Society, at the rate of \$1.75 each, weekly.

Two hundred and sixty-four cases were disposed of by this committee between June, 1856, and June, 1858.

The report contains brief notices of the cases occurring at the several prisons, and it is quite evident that the machinery is well adapted to the purpose in view, and is eminently successful in its workings.

There can be no doubt of the softening and subduing influence exerted upon the mind of a prisoner under almost any circumstances, by the visit of an intelligent Christian friend. However kind and sympathising the attending officers may be, “the presence of some one connected with the outer world is in itself a relief from the monotony of prison life. Thus the prisoner is predisposed to listen kindly to words kindly spoken, by one who voluntarily, for a time, shares her cell, and reads the only book which reveals authoritatively the terms of acceptance on which both must rely for pardon and salvation.”

To those who are disposed to serve in the self-denying and often discouraging work of prison-visiting, it may not be amiss to suggest that the prompt attention to each new case is very important. An influence for good may be acquired, which will, perhaps, give a new direction to the conduct of the prisoner for the full time of penal servitude. The voice of kindness and sympathy heard when the offender *first* realizes the consequences of his course, may be more efficacious than at any subsequent period.

There is a public institution, corresponding in its principal features to the houses of reception to which we have referred. It is the Government “Refuge” at Fulham. Prisoners who have conducted themselves well at Millbank and Brixton, and who are likely to profit by more individual attention than they can receive at either of those prisons, are, during the concluding period of their imprisonment, placed in the Government ‘Refuge’ at Fulham. Being selected with a view to their being placed in service, or being provided with some means of obtaining an honest livelihood after they are liberated, they are instructed in laundry and household work of every kind; and every means employed in the best

Reformatories are here afforded, with the encouragement of knowing that, while they behave well, the penal character of this last stage of imprisonment is merged in the enjoyment of all the spiritual and temporal privileges which they could meet with in an asylum for the free. We are enabled to state, on the best authority, that, out of eighty cases which had left the Fulham Refuge in the month of April last, sixty were doing well.

Among the country institutions, having in view the welfare of discharged female prisoners, and not under the control of a Government or Magistrates, is a refuge at Bristol, “where the hopeful discharged female prisoner (above sixteen years of age) enters *direct* from prison by her own free will, and under a promise to submit to the rules of the house. *She undergoes a probation of three weeks or a month in her dormitory*, during which time she is daily visited by one or more ladies, who thus obtain a moral influence before the probationer is admitted to hold free intercourse with her future companions.” Thus prepared, the inmates are afterwards trained to all sorts of household employment. Daily religious instruction is given, and the singing of psalms and hymns practised; they are also taught reading and writing, and the first elements of arithmetic and geography; knitting, also, that very useful branch of female industry, is introduced. Ten young women have been provided during the year with respectable situations, and not one of them has again been accused of dishonesty. It is mentioned as an evidence of the genuineness of reform, that a small gold brooch, found by one of the inmates, while clearing a room, was given up, and, after many inquiries for the owner, was restored to a lady who had visited the asylum; also, that a £5 note, folded very small, was found by the youngest inmate; this, also, was immediately given up, and restored to the owner, a few hours afterwards.

In the report of the Exeter Refuge allusion is made to the fact, that the introduction of the SEPARATE SYSTEM into the prison there, has reduced the number of prisoners greatly. Of 199 discharged female prisoners received, fifteen are now under care, and a good account is given of 104 who have left it. We cannot but regard such a measure of success as most encouraging. That much of this success is owing to the individual separation of the convicts cannot be doubted. Indeed, the visitors to the Falmouth Prison emphatically condemn it for the absence of that principle. “With regard to our prison I can say nothing encouraging; there is no change with regard to its arrangements. Some of those who are interested

for the poor people immured within its walls, do what they can to keep the necessity of improvement before the public, and there are two who visit regularly, as they may find it convenient, but I fear they can say nothing with regard to the effect produced. We feel that we must keep in view the injunction, 'In the morning sow thy seed,' &c. Could solitary (separate) confinement be but partially carried out, the case would be more encouraging; and we shall be most glad to have such a prison as would allow of our making trial of it."

And in respect to the Gloucester Prison, a lady who has visited it regularly, says: "City convicts are received by the county; but prisoners before trial, summary convictions and prostitutes all herd together in one common ward and yard by day, and one large room by night, both rooms being out of sight and hearing of the Matron. I believe that I have mentioned this often to you; but it is so great an evil, and so dangerous to the comparatively innocent, that I cannot but advert to it again."

In the city of Utrecht a new prison, on the Cellularian or separate plan, has been erected, and a Ladies' Committee, formed, like the one in London; and the government of Holland has expressed a wish that near every prison such a Society be established, with full permission to visit the prisoners. In Stockholm, also, is a Ladies' Committee. "There is not a female prisoner in Stockholm who is not visited once in the week, or who has not at least the opportunity of hearing the word of God explained to her in one of the departments of the large house for penal servitude, where their attendance on Sunday is voluntary."

The readers of our Journal are aware that in Philadelphia and New York, and perhaps in other cities of the United States, similar organizations have existed for many years. Among them is the "Howard Institution," under the care of an Association of Women-Friends of Philadelphia, the object of which is, "the care and reformation of female prisoners, who, after a term of imprisonment, manifest a disposition to reform; or others who, on account of their evil habits, need Christian counsel, moral restraint and domestic discipline. To accomplish this, a home is provided to shelter them from evil associations; to surround them with wholesome moral and religious influences; to inculcate good principles, and habits of neatness and industry; to instruct them in domestic duties, so as to qualify them for usefulness; and

after a term of probation, to obtain for them respectable situations in town or country.”

The Fourth Annual Report of the Institution (whose house of reception is 1612 Poplar Street) shows, that during the year fifty women have been admitted, and remained under care from one week to several months. The necessity of some such provision for this class of our fellow-citizens is not exaggerated. “However trivial may have been the crime of which the prisoner was convicted, (and that many are convicted of *very slight* offences, there is no doubt); however well she may have conducted during her incarceration, the *name* and *stigma* of *convict* is upon her. Often she is without home or friends, with insufficient clothing, hungry and penniless. If she *had friends*, they are alienated from her; it may have been years that she has been separated from them—they have forgotten her. *None* will receive her into their houses. *None* will give her employment. What can she do? Perhaps the sparks of virtue are *not yet* extinguished. In the solitude of her prison cell she may have formed good resolutions; there may be an earnest struggle in her soul after a better life; but she is weak. The tempter comes in; cold and hunger and neglect, drive her to despair and crime. Her desires for reformation are lost among evil associations; and she sinks deeper into the gulf of depravity and wretchedness. Who will say that humanity is doing its duty to these poor outcasts?”

The report before us affords gratifying evidence that endeavors to rescue and restore to respectability and usefulness those unhappy women are not misplaced. “In a *majority* of cases the Institution has been a blessing to those who have been subject to its discipline.”

The Fourteenth Annual Report of the Women’s Prison Association of New York, concerns a charity hereafter to be known as “The Isaac T. Hopper Home,” and it brings to view some interesting facts, and presents strong claims to generous assistance. The institution has been for several years independent of the New York Prison Association. Its object is to ameliorate the condition of female prisoners, improve the discipline and government of prisons so far as females are concerned, and to give temporary support and encouragement to reformed female convicts. To give system and efficiency to their laudable efforts, they earnestly desired help in erecting a building adapted to that purpose, and at one time had flattering prospects of success. They had reasonable ground to believe, that with

suitable accommodations, they might make the home a self-sustaining house of industry; but their expectations were not realized, and as the only alternative they purchased and put in repair the house they have long occupied.

We have often adverted to the lessons which a sound economy reads to us on the subject of caring for discharged prisoners. When it is considered what immeasurable injury a single evil-disposed person may do, and what expenses mere vagrants or petty thieves, to say nothing of forgers and counterfeiters, impose on the community, it cannot be regarded as a matter of trivial moment whether an enemy of society is transformed into a friend, and a burden into a help. Hence the managers of the Society repudiate the idea that they are beggars, and claim to be instruments of a true economy.

“The subjects of our care” (say they) “are costly dependents of the City’s Treasury. They not only are fed, clothed, and housed by the city, but their crimes waste the property of our citizens, and their misfortunes swell their taxes. Who are the inmates of our Home? A few young women may occasionally be found there—strangers in the country, wanderers from their natural homes, who, alone and friendless in this great city, have fallen, not from vicious propensities, but through sheer misfortune; and a few there are whom we have also found in your prisons, the victims of wrong suspicion and helplessness. All these, after a short novitiate, we have restored to decent life, and productive industry. But for our interposition, they must have remained, with hardly an exception, your costly pensioners. Some of our inmates are from Sing-Sing—convicts, who have been sent there for the lighter class of crimes so punishable; but by far the greater part are from the Tombs—Blackwell’s Island—persons committed for petty offences, or merely for vagrancy. These are the victims of intemperance. They are led astray at first by the social element of the Irish, by an inherited appetite, by bad company, by the thousand influences and temptations that beset the ignorant and neglected, by the brutal treatment and desertion of husbands, by wrong, disappointment, and despair. These offenders are tried in the Municipal Courts, and sent for weeks, or months, as the case may be, to Blackwell’s Island. At the end of their ‘term’ they return to the city homeless and friendless: a few hours, days, or weeks at farthest, find them again making the same circuit through commitment, trial, and ‘term’ on ‘the Island’—and all at the expense of the sober, hard-working citizen, who, if he takes time to look at the matter, will be somewhat startled to find how

much he has to pay to the police, the justices, the prison officials of all degrees, from the head superintendent to the driver of the 'Black Maria,' and the expensive *lodging houses* of Blackwell's Island." And again, "all we do, is a clear saving to the city. We do not count merely the time that our inmates are sustained at the Home, for—though they are supported by the public, by their charities, instead of their taxes, yet two thirds of those received at the Home during the last year, have been sent to places: not only has the public been relieved from their support, but they have become productive laborers. We would make no erroneous impressions. These people do not all remain steadfast. They are, for the most part, adult children, liable to go astray at any strong temptation or impulse, or to fall back under the despotism of old habits. They require to be watched and trained, kindly guided and cared for; and they do not *always* find religious zeal, patience, skill, and tender forbearance in their employers. Still, under all their inevitable disadvantages, many of our inmates have persevered steadfastly in a good life, proving to the most sceptical, that with God's blessing on the helping-hand, they can be saved."

The facts are very stubborn. Here are one hundred and twenty-five women, addicted for the most part to degrading and infamous vices—living in vagrancy, dishonesty, drunkenness and prostitution; and a large proportion of them familiar with the corruption and degradation of prison life. Somebody must look after them, and none but practical, zealous, working women, who will give themselves to such a task—not for a visit or two, nor for a few days or weeks, but for months, and perhaps, for years—seeking out, watching over, encouraging and guiding those who are susceptible of improvement, if not of radical reform.

A few such are found, and the one hundred and twenty-five outcasts are gathered to "The Isaac T. Hopper Home." There are some interesting cases among them, and they are all objects of interest; but, says one, "Do you really expect to do any permanent good to such people?" And another exclaims, "How disgusting it must be!" And a third, "How very disagreeable to go to such horrible places! How much better and wiser to drop a twenty or a fifty dollar bank note to the board of managers, or the matron, saying, You have hard materials to make up. Here is an expression of my sympathy. The friend of the friendless bless and prosper you." But what has become of the one hundred and twenty-five inmates received during the year? Why, seventy of them were sent to service, and generally

in the country. Of course they are not burdens to the public treasury while in this position, nor are they plundering houses and stores, nor provoking home brawls and street fights. This is no little saving all around. They not only cease to be burdens; they have been converted into producers; one has twenty, another fifty, and another seventy dollars reserved from earned wages. The cleansing, tidying, training, encouraging and aiding received at the Home, have fitted them for, and introduced them to, respectable and useful occupations. What sum shall we set against this as the probable amount of expense in arrests, prosecutions, sustenance, gaol fees, &c., had they been suffered to pursue their chosen way.

But some are discharged, and others leave, and ere long find their old lodgings in the Tombs or on the "Island." Yes, that is so, but mark this! "They almost invariably appeal to us again for aid, and receive it,  and *each time the period of their perseverance in good is prolonged.*" This is hopeful. It invites us to patience and faith. A single peach or pear on a favorite tree, or a single bunch of grapes on a choice vine, during the first bearing season, gives more pleasure than a peck of fruit in any subsequent year. The field which these benevolent ladies and their sisters of charity in our own city and the British metropolis, are called to cultivate, is covered with a luxurious growth of wild and poisonous plants, in every stage of growth and bearing. Their labor and skill, with the aid of the Divine husbandman, is devoted to an insertion here and there as opportunity offers, of a graft from a better stock. If it "takes," they are encouraged to hope for fruit in due time; and though disappointments are not rare, success is frequent enough to animate and encourage them, and shall ensure them the hearty sympathy and generous aid of those whose taxes are lightened, whose property is saved from depredation, indirectly at least by their instrumentality.

The house occupied by the "Howard Institution" is perhaps as convenient as any one that is not originally designed for such a purpose; but it does not afford such opportunities of *individualizing* the treatment as would be desirable. The New York premises are probably no better in this respect.

We cannot refrain from expressing the conviction that the more rigidly persons who have been convicted of crime can be separated one from another, until their resolutions to lead an amended life are fully confirmed and well tested, the less the danger of a relapse. We are aware of the

argument sometimes used, viz.: That these principles cannot be tested till the parties are exposed to temptation. But there are temptations enough in the ordinary circumstances of life. If a young woman, discharged from the penitentiary, and received into some "Home" or "Refuge," should be kept from all association with those who have been in like condemnation, until she is prepared for, and provided with, some place in the country, the first day in her new position would present temptations enough to test her newly acquired strength. Industry, honesty, truthfulness and sobriety are every day virtues. If they are possessed they will show themselves without urging, but while under any degree of restraint or inspection these virtues may be counterfeited. It is not needful to put them into the company of a vagrant, a thief, a liar or a drunkard to bring them out. On the contrary, our true policy is to keep them as far apart as possible, and especially when the virtues are struggling to supplant the vices.

Let our penitentiaries and county gaols provide for strict individual separation, accommodation and employment of all prisoners, of every grade, tried and untried. Let kind, judicious, intelligent friends visit them, express proper sympathy with them, and hold out encouragement to them. Upon their discharge, let there be found a place of temporary refuge where they can be comfortably provided for, relieved from the pressure of immediate temptation, exempted from any associations unfriendly to their permanent reform, and prepared by a reasonable probation for some employment. The moment this is accomplished, and some benevolent heart is opened to give the party an opportunity to retrieve a forfeited place in the confidence of the community, let it be embraced with a continuance of the watchful care which may be still needed in unforeseen emergencies.

With these precautions and aids we are confident thousands of our convicts might be rescued from reckless criminality or hopeless despair, and some of the most prolific sources of crime be dried up. The government is bound, by every consideration of public policy, to aid liberally in restoring to honest and virtuous ways those who have been subjected to penal suffering, and who are disposed to amend their lives. Its functions do not begin nor end in arrests, convictions and sentences. It is to employ all practicable means of keeping people out of crime, by encouraging and sustaining schools—literary, industrial and reformatory, and bringing ALL the children and youth of the country under their influence. And when, in spite of all these wholesome provisions, men and women do betake

themselves to criminal courses, and have suffered the just reward of their deeds, it is the duty of the government not to leave them, at the expiration of their sentence, to shift for themselves, but to hold out a kind hand to them, if they are inclined to better ways, and assist them to regain a creditable position among their fellow men. Society has the worst of it if they relapse into their previous associations and practices. And hence, we earnestly plead for the support and encouragement, by public and private liberality, of every sensible scheme to convert a convict into an honest man—an enemy of society into a friend and helper.

ART. V.—IRISH CONVICT PRISONS.

The intermediate system of discipline adopted in the convict prisons of Ireland, to which we have called the attention of our readers in previous numbers of this Journal, seems to gain favor. The simple principle on which it is founded is the gradual improvement of those prisoners who are susceptible of reforming influences, until they are prepared for entire freedom, and the return to and continuance in confinement of those who are obstinately bent on pursuing a criminal career. The system is so arranged as to give the convict the control, in a great measure, of his own position. If he is disposed to do well, every reasonable aid is afforded him for the purpose. If his vicious habits are so confirmed as to forbid the hope of his permanent reformation, society is protected from his hostility, by his retention, indefinitely, in prison. In the first place, the prisoner must conform to certain rules, while confined in the ordinary prison, to entitle himself to the privileges of the intermediate prisons. Any misconduct at this stage, will have the effect of postponing his admission into the intermediate prison, and thereby defer, to an equal extent, the remission of a portion of his sentence. The following table shows, at a glance, what inducement the prisoner has to co-operate with the government in his reformation:

SENTENCES. <i>In ordinary Prisons. Shortest term in intermediate</i>		FIXED PERIODS OF IMPRISONMENT.		OF
				<i>Prisons</i>
		Years.	Months.	Years.
3 years 2 2 0 4				
		-----v-----/		
			2 6	
4 „ 2 10 0 5				
		-----v-----/		

5 „ 3 6 0 6	3 3
	-----v-----/
6 „ 3 9 0 9	4 0
	-----v-----/
7 „ 4 0 1 3	4 6
	-----v-----/
8 „ 4 8 1 4	5 3
	-----v-----/
10 „ 6 0 1 6	6 9
	-----v-----/
12 „ 7 3 1 9	7 6
	-----v-----/
15 „ 8 0 2 0	9 0
	-----v-----/
	10 0

It will be seen that, by this scale, a three years' sentence is reduced to two and a half; four years to three and a fourth; five years to four; six years to four and a half; seven years to five and a fourth; eight years to six and three-fourths; ten years to seven and a half; twelve years to nine, and fifteen years to ten.

In order to ensure the remission of any part of his sentence, the prisoner must work himself, by good behaviour, into the intermediate prison, through which he must pass to obtain his final liberty; and this liberty, when obtained, will be conditional; for the criminal who, after his discharge, consorts with bad companions, and shows that he meditates a return to criminal courses, is liable to be re-arrested and re-consigned to the prison from which he was (as it appears) prematurely discharged. Thus society is protected, on one hand, from the existence of hordes of criminally-disposed persons at large, and the discharged convict is restrained from renewed transgression by surrounding the further commission of crime with obstructions so formidable as to disband, in a great measure, the class of "habitual offenders."

It will be observed that the remission of any part of the sentence is not a matter of *compact* between the government and the prisoner. It is a gratuitous act, and as such, may be restrained or modified, to suit individual cases. When crimes are of so heinous a character as to forbid the extension of any such leniency, they will, of course, be specially dealt with by the government.

With a uniform constabulary system, embracing the whole country, and a uniform penal code, we might expect here a more perfect system of prison discipline than in any other country; but there is much complaint of the inequality of sentences for the same crimes, and of the too great leniency shown to “habitual offenders.” These, it is maintained, should be recognized by the law as a distinct class, as they are by the police. The practice of lengthening the sentence of an offender because of previous convictions, is regarded with favor, and its observance should be systematized and made universal. In this way “conditional pardons and registrations for the remitted term may be made the means of causing the very general incarceration of ‘habitual offenders’ in the only place suitable for them—convict prisons—with sentences of sufficient length to insure their being properly dealt with.”

An important principle is involved in this probationary system. If a man deliberately commits an offence against public law, the presumption is that he will repeat it whenever the occasion and temptation are presented. The privation and suffering which the execution of his sentence imposes, may deter him from farther transgression, but the burden of proving this is on the offender. The first duty of society is to protect itself. When the period of penal restraint expires, the man is discharged, on the presumption that he will sin no more. Whatever measures we can adopt to strengthen this presumption, and to assure society that he may be safely set at liberty, are as salutary for him as for us. And there is a farther obligation, and a very imperative one, on the part of the government, and that is to *strengthen and encourage purposes of amendment*. If the liberated convict finds it difficult to procure labor where his antecedents are known, he has the option of going to countries where labor is more in demand; and the means of reaching those countries are supplied by his prison gratuity, obtained through his own industry. In many of our schemes for ameliorating the miseries of public prisons, the interests of society are too often overlooked, and the comfort and ease of a transgressor unduly sought. There is a medium. The community whose laws have been outraged, justly demands the prompt and certain imposition of the penalty. If this can be imposed in such a way as at once to express the due disapprobation of the act,

and a desire that the offender may be restored (on his reformation) to his forfeited place in society, a double advantage is gained.

As more enlightened methods of dealing with the criminally-disposed prevail, we have a right to look for a more efficient and well-balanced administration of penal law, and as a consequence, a sensible diminution in the number of crimes and criminals.

Brief Notices.

ESCAPES AND PARDONS.—The two chief ends which are usually supposed to be answered by punishment are,—1. To reform the offender; and, 2. To deter others from the like offences. Some persons deny the legitimacy of the latter purpose, affirming that society has no right to inflict pains and penalties on me, for the benefit of my neighbors. Without attempting to settle any such nice points, we have a plain, palpable fact staring us in the face, which seems, in a large measure, to frustrate both the ends to which we have referred. That fact is—that the punishment of crime, in our country, is one of the most uncertain events with which we are conversant. If a horse-thief, contemplating the fastenings of a stable-door, should have fore-thought enough to inquire whether there is such a reasonable probability of his punishment as should deter him from his purpose, we can scarcely suppose he would come to an affirmative conclusion. The contingencies on which the result depends are very numerous and complicated. If his picture is in the rogue's gallery; or if he is an old, well-known horse-thief, so that suspicion would naturally fasten upon him if he was within fifty miles of the *locus in quo* at the time; or if a reward is offered for his arrest, more tempting than what he can offer for leave to run,—it may be his turn to be caught. But if he has money, or friends who understand the “intricacies” of the administration of penal law in some of our chief cities; or if he has had opportunities, in some associate prison, to learn how to dodge an officer, either before or after sentence, or to earn his liberty, even when fairly caged, either by working through bricks and mortar, or through the more porous and yielding tissue of a Governor's sympathy,—he has little or nothing to fear. If there is no more risk than that, the State is certain to be plundered.

We hazard nothing in saying that the influence which the punishment of crime exerts, in deterring the criminally disposed from committing it, is scarcely worth a padlock. A single escape of a prisoner from gaol, or from the custody of an officer, weakens whatever deterring influence is exerted over hundreds of minds; and so likewise does a single pardon. Each one of the hundreds betakes himself to a criminal life, expecting to be the favored rogue. We sometimes think, with a sigh, of the good time past, when, under English law, the constable was the chief man in the parish, and when the parish was responsible for all robberies committed within its limits, if the thieves were not apprehended.

If we had a general, succinct return of the escapes and pardons in the United States, for a single year, it would show a degree of looseness in the administration of criminal law, and of imprudence in the exercise of executive clemency, of which the public have little conception.

From a great number of cases which go to corroborate the statement we have made, we have room for but a few, and these will serve to indicate the character of all. We give them as reported in the newspapers:

On a late Saturday night five prisoners escaped from the gaol of Cook county, Ill., at Chicago. A paltry reward of \$150 was offered for their apprehension. The prisoners were supplied with tools by their friends outside. They were arrested for larceny. Three other prisoners, charged with robbery, were engaged in digging a hole through the floor, when the escape of the others caused them to be detected. The prison is in a very insecure sort of place, and had been grossly neglected by the authorities.

In Blair county, on the same Saturday night, a man, alleged to have stolen several horses, and who escaped from the person having him in charge, while on their way to Bedford recently, was re-arrested at a private house on Bobb's Creek, on Saturday night a week. Assuming a religious guise, previous to retiring he called for a Bible, and read a chapter, and prayed with the family. When arrested he was in bed, with a six-shooter under his pillow, and every barrel charged with a bullet! and in his pockets were found several counterfeit notes and a small amount of good money. A reward of \$500 had been offered for his arrest, with the horses.

Two prisoners escaped from the gaol of Clinton county, Ohio, under circumstances (says the Clinton Watchman) that would indicate a good deal of carelessness on the part of the sheriff, who had charge of the gaol. They

escaped by cutting a hole through the floor of the hall around the cells, where the prisoners are permitted to stay during the day. After cutting this hole, which they did with an old case-knife, they crawled under, and finding there an old scaffold-pole, they made a battering-ram of it, and punched a stone out of the outside wall sufficiently large to permit their egress!

About a year ago, Norristown, in this vicinity, was harassed by the operations of a burglar of special daring and adroitness, who, after perpetrating a series of successful burglaries, was arrested, and imprisoned under a sentence of fifteen years. He had served about a year thus far, and on a late morning was found to have successfully broken gaol and made his escape.

He got away, it is supposed, about four o'clock in the morning. His cell was in the upper story of the gaol, and had an arched roof of solid masonry, nine inches thick. When the turnkey entered the cell, it was discovered that the prisoner had cut entirely through this arch, and then through the sheet-iron roof above it, and had lowered himself by means of a cord made of the carpet-warp furnished him for working purposes. The escape was perilous in the extreme; while it is the opinion of experts that the preparations for it have been going on for a long time. Upon entering the cell the officer discovered an old shirt, which the prisoner appears to have stuffed in the hole during the daytime, while it is equally apparent that, by means of pieces of bread manipulated to the consistency of putty, and plastered into the edges of the hole, the discovery of the cheat was rendered still less probable. As a matter of course, the anxiety to recover such a prisoner, on the part of the sheriff, is very great; and a reward of a hundred dollars is offered for his capture! Due anxiety to *keep* him when they had him would have been more creditable to the officers, and much better for the public.

On the second of December, six convicts employed in the moulding shop of the New York State Prison, at Auburn, effected their escape. The prisoners had got half a mile from the prison before pursuit was commenced, and succeeded in leaving their pursuers behind.

On the evening of December 15th, two convicts, confined in a Virginia gaol, under sentence of death, to be executed the next day, escaped from the gaol, and were fired upon by the sentinels and driven back to prison. The prisoners had mounted the gaol wall when they were discovered by the sentinel on the outside, who immediately gave the alarm and fired on them.

They had sawed their manacles asunder with the blade of a Barlow knife, which they had concealed and made into a fine saw. It was ascertained, from their confession that they had been engaged in preparing for their escape during the preceding ten days. They made a hole in the wall near the window, which they concealed with paper, hiding the bricks they removed under the bed. Upon the alarm being given, they made no resistance, but surrendered as soon as they discovered, by the shot of the sentinel, that they were detected. One of them said he could have made his escape had he jumped down and throttled the sentinel.

All the inmates of Warren county (Pa.) prison, two women and two men, escaped one night recently. The women up stairs burnt the clasp out that fastened the door through a single pine board,—came down stairs and unlocked the cells in which the men were confined, by means of false keys, when the party departed in peace, taking a wagon that was waiting in the vicinity, with them.

Thirteen prisoners escaped from Munroe county gaol, at Rochester, N. Y. They seized the gaoler and wrenched the keys from him,—then thrust him into a closet with double doors, fastening them outside. The gaoler's wife was in the office, but heard nothing of the disturbance until the whole gang were at the door, demanding an outlet, which it was in vain for her to oppose.

Two prisoners, burglars and counterfeiter, on the way to the Jackson penitentiary (Mich.), guarded by three officers, jumped from the cars while under way. They were heavily ironed, and pretended to be asleep. As they approached Grass Lake station, the sheriff, who sat in front, stepped back to look out of a window, when they rushed to the door, and their irons mysteriously parted, and one jumped one side, and the other, leaving the officers in gaping wonder.

A man, whose crime (forgery) was of such a heinous character as to induce the government of Wurtemberg to pursue him to this country, was found and arrested. After a partial examination, instead of being remanded to prison or held to responsible bail, he was allowed to remain at his own lodgings, being in the *constructive custody* of the Deputy Marshal. This functionary, instead of producing his prisoner when wanted, stated to the commissioner that, on a preceding evening, the foreign rogue invited him to take a friendly glass, which he accepted, and soon after lost his

consciousness; and the prisoner, availing himself of so favorable an opportunity, took to his heels and, before the officer recovered his wits, was beyond recapture.

So it was with one Dr. Gallaudet, not long ago, who succeeded in getting the officer drunk, and escaped from his clutches, and, finally, from the country.

These cases do not constitute a tenth part of the advertised escapes of a single quarter; and those that are never brought to public notice—who knows their number?

EARLY CRIME.—Few persons are aware of the extent of juvenile crime in our principal cities. A large majority of these offences are overlooked until they become so serious in their consequences to private interest as to command attention. And even then, the prosecution of the offence is generally waived if compensation is made, or if the delinquent is sent away upon a voyage, or to a distant part of the country.

We have grouped together a few items out of many scores which a single quarter furnishes, from which our readers can make their own inferences. They confirm us in the conviction long entertained, that we need a place of *punishment* for those who are too old in iniquity to be safe inmates of Refuge or Reformatory, and too young to endure the severity of rigid penitentiary discipline—a *juvenile separate prison*.

A gang of boys, none over fourteen, were arrested, a few days since, in Cincinnati, for stealing. They were detected in the act of taking goods from store doors. They stated that they belonged to a gang of boys employed in this business by a man who gave them 75 cents for every article they would bring him, and that they used the money in visiting the theatres and in refreshments. An officer took one of them to the National Theatre, where he pointed out two more of the gang, who were taken into custody. On visiting the premises of the man whom they charged with receiving the goods, they found some of them concealed under the floor. There was also another place of deposit disclosed in another section of the city. The boys, who were all of Irish parentage, exhibited the utmost indifference and shamelessness, and the parents of two of them did not feel interest enough to attend the hearing!

The Boston papers give us an account of a similar band of boys who had clubbed together for thieving purposes, in Medford, a few miles from that city. They were discovered in an outbuilding which had not been used for some time. Various articles, such as portemonnaies, wallets, passbooks, pencils, &c., were found in their possession, and identified as having been stolen the day before. A book was found among them, containing the names of the members of the organization, about half a dozen in number, as far as recorded. Following the names was the word "Rules," in large letters. The only rule which appears, was the following:

"1. The boys must steal as much as they can, and present it to the chief."

The book also contained a number of passwords, and a list of the articles stolen, above enumerated, and the date. The boys belonging to this young thieves' association are from ten to fourteen years of age.

At Cleveland, Ohio, a party of juvenile vagrants, some twelve in number, recently organized themselves into a society for the purpose of robbery, dock-thieving, &c. They took possession of a large cave in the side-hill on the west side of the river. They chose their captain and were progressing very smoothly when the officer pounced upon them. They were all sleeping in bunks, with the exception of the guard, who took to his heels on the approach of the officer. Two or three others made their escape. The following boys, the oldest of whom is not over fourteen, were arrested:—John Fitzgerald, Thomas Doland, Michael Dunn, William Mulcoge, Patrick M'Donald, William Donald, William Shay and James Mahon. Their names are given as indicative of a nativity not otherwise to be particularly specified.

One of the boys is only six years old. He said his parents, in a fit of drunkenness, kicked him out of doors. The other boys said that they had no home or friends. They could only live by stealing, and on advice of one of their number, who had read Mike Martin and other yellow covered books of that sort, a band of robbers was formed, and the cave taken possession of. The boys were sent to the State Reform Farm, there to remain until discharged by law. [Of this school we have given a full account in a former number, and would be glad to hear of its more recent success.]

Not long since, in New York, a policeman, about 11 o'clock at night, was surprised to find the front door of a jewelry store, in Broadway, unlocked, and on entering he found a boy named Joseph Bascom, seventeen years of

age, employed by the firm, tied down upon a bed and gagged. After being released, the boy said that about ten o'clock, shortly after the store was closed, he heard a rap at the door, and supposing that one of the clerks had returned for something, opened it, when three men rushed in, one of whom threw a large sheet over his face, while the other two grasped him by the throat, and after gagging him, took him to the bed and fastened him there, his head all the time being covered. After this he heard them open the safe, and in a short time they left. The officer doubted this plausible story, and subjected him to a severe cross-questioning, which resulted in Bascom confessing that the whole affair was contrived by himself and another lad named Primrose! They obtained an impression of the safe key, and selected the time when the holiday stock was in store for the commission of the robbery. Bascom admitted his accomplice after the store was closed, and then laid down upon the bed and was gagged and tied by him. Their plan was a success, and \$15,000 worth of goods were taken from the safe. The police were soon on the track of Primrose, whom they followed to the establishment of a well known receiver of stolen goods named Schwartzwelder, who, with Primrose, was arrested. On searching the place all the stolen goods were recovered.

Ought a criminal of this stamp to be sent to a reformatory school? Is he to be regarded as no more depraved and desperate than a truant, or an insubordinate child? If *he* is sent there, should *they* be?

COMPROMISING WITH ROGUES—In a former number of this Journal, we entered somewhat at large into the mischievous consequences of concealing or winking at, or compromising deliberate, overt, criminal acts. A clerk in a store abuses his master's confidence, by abstracting money from letters or purloining letters containing remittances—he being entrusted with the duties of mail clerk. The fraud has been practiced for weeks, and the adroitness with which it was perpetrated and the ingenuity displayed in concealing the disposition of the funds, evinces a singularly depraved disposition. The father or friends interpose, and a public prosecution is avoided. The young scape-grace is sent from the country, and having unusual shrewdness and audacity, succeeds in winning confidence. He writes home and tells of his good fortune, and hope is excited that his ways are reformed; but soon a bolder and deeper game of villainy is played, and

the scene again changes, but with the same result. At last, however, he is brought to the bar of public justice, and now a revelation is made of the successive steps in his downward path. Each of the delinquencies has its witnesses and victims; but silence has been volunteered, or purchased, or imposed, and so the reckless career has been encouraged. This is not a fictitious case and it may serve to introduce an illustration of this misconceived leniency which has lately been made public. A man of glib tongue and imposing appearance, professes to be a physician. He takes up his residence in one of our suburban districts, and, in process of time, is guilty of gross malpractice. To avoid an exposure of his ignorance and cruelty, he pays the injured parties \$1200 and removes to another part of the country. There he defrauds a bank of \$1,000, but the evidence is not absolutely conclusive, and upon his refunding the amount the bank forbears to prosecute. By-and-by he is arrested for a felonious assault on a female patient, (the wife of a college student who wishes to conceal the fact of his marriage,) and so the offence is hushed up. Next he marries the widow of a man who had died suddenly while he was in professional attendance upon him, swindles her out of her property and then abandons her. He now turns his attention particularly to the practice of procuring abortions. Three young women, who, to hide their shame, put themselves under his care, died at his house during one summer, and not many weeks apart. And not long ago, he was convicted of manslaughter, in causing the death of a young woman who had resorted to him for the same inhuman purpose, and of this he was convicted and sentenced for it.

It turns out that the man is a native of Ireland, and that his name was assumed. He was sentenced to the Penitentiary, but who can tell how soon he may be liberated by an improvident pardon, and find himself in full practice, under some other name, and in some unsuspecting community?

Why was not his character properly exposed, when, by successive criminal acts, its settled traits were discovered, at least so far as to put the unwary on their guard?

CONSUMPTION OF INTOXICATING DRINKS.—Some persons have flattered themselves and the public that there has been a sensible decrease of the consumption of ardent spirits in the British Empire, but it is confidently affirmed that the population statistics and excise returns show a very different state of things. In 1821, the population of England and Wales was 11,978,875, and they consumed 7,261,581 gallons of spirits. In 1856, the population was estimated at 20,000,000, and they consumed

13,964,284 gallons, besides over 600,000,000 of ale and beer. In 1821, the population of Scotland was 2,093,456, and they consumed 2,558,285 gallons of spirits. In 1856, a population of 3,000,000 consumed 7,402,643 gallons. The population of Ireland in 1821, was 6,780,826, and they consumed 3,340,472 gallons of spirits. The population in 1856, about the same as in 1821 (famine and pestilence having taken off 1,500,000 of consumers), they consumed 6,936,938 gallons of spirits. We apprehend the state of the case is but little, if any, better in these United States.

PRISONS AND PRISONERS IN SOUTH CAROLINA.—In his late message to the Legislature, the Governor of South Carolina suggests the propriety of making a breach of trust a higher offence than larceny, and making the punishment equal, if not more severe. He thinks their system of discipline needs reform, (of which, we apprehend, no intelligent citizen can doubt,) and he justly complains that, while witnesses are subject to close confinement, prisoners held on criminal charges, have the free range of the prison!

ANNUAL CENSUS OF THE PHILADELPHIA COUNTY PRISON.—Total number received during the past year, 19,846, being an increase of 4,933 over the number the year previous. Of this number 19,822 were discharged—446 to the convict side of the house; 4,604 having served out their time; 25 have died, 3 been pardoned, and one committed suicide. The rest have been released by magistrates, or acquitted by courts.

The number of prisoners received during the months of the year were:

January,	1,444	Discharged,	1,379
February,	1,359	„	1,439
March,	1,708	„	1,623
April,	1,531	„	1,566
May,	1,611	„	1,581
June,	1,712	„	1,782
July,	1,922	„	1,891
August,	1,931	„	1,959
September,	1,679	„	1,601
October,	1,685	„	1,705
November,	1,764	„	1,739
December,	1,500	„	1,557
	19,846		19,822

December 31, there remained in confinement 777 prisoners of various grades.

A QUARTER'S POLICE WORK IN NEW YORK.—The police force of New York numbers 1,699, and the district embraces the counties of New York, Kings, Richmond, and West Chester. The expense of the police for the year is stated to be \$1,167,336, or an average of \$700 for each officer. The operations of the last quarter are as follows: Total number of arrests, 23,971, and of these 16,701 were males, and 7,220 females. For the same quarter last year there were 21,022 arrests, showing an increase of 2,949. Four-fifths of the persons arrested were of foreign birth. Of the offences committed 17,077 were against the person, and only 3894 against property. Two thirds of the offences were committed under the influence of intoxicating liquors; 15,917 of the offenders could read and write; 6,783 had no education whatever; 1,273 cases were not determined; 12,039 were married; 10,659 unmarried; 1,073 cases not reported.

ALABAMA STATE PRISON.—The Governor's Message states, that there are 216 convicts in the Penitentiary, of whom six are females. He recommends the *separate* system, to be applied to them. The male convicts are let out to

a contractor, who agrees to board them, and pay the State \$1,550 per annum for their labor. A poor bargain in any event.

NEW YORK PRISON ASSOCIATION.—At the December monthly meeting of the executive committee of the New York Prison Association, the report of the agent of the committee of Detention and Discharged Convicts, showed that during the year then about to close, 5,740 persons committed to the city prisons were “visited and familiarly spoken with” by him. In 1,394 cases, circumstances of extenuation were offered, and hopeful signs exhibited—532 cases were investigated and discontinued on proper representation—551 were discharged from custody as improperly held—679 were relieved by small sums of money till they obtained employment, and 320 were supplied with clothing or employment, or both. The contributions to the funds of the Association during the year were but two thousand dollars!

DELIBERATE MURDER BY A BOY UNDER NINE YEARS OF AGE.—On the 25th of October, a boy between eight and nine years of age, went to a neighbor’s house while the elder members of the family were absent, and with a gun deliberately shot down a girl about twelve years of age, killing her instantly. The boy, upon being questioned, first said the gun had fallen accidentally and shot her. He subsequently stated that he was mad at her, and had killed her! They had attended school together, and had quarreled. The boy had threatened to shoot the girl, and took this occasion to carry out his threat. The occurrence took place in Montgomery county, Pa., a short distance across the Chester county line, from Valley Forge.

DISTRIBUTION OF LABOR IN PARIS.—A recent inquiry into the occupations of the laboring people of Paris, with a view to ascertain how far public improvements now in progress bear favorably on their interests, shows a very different distribution of labor from that supposed. Of the 360,000 men and women engaged in various trades and handicrafts, it was apprehended that by far the greater part were employed in building operations, as masons, carpenters, joiners, painters, &c., but the late investigation shows that the trade which engrosses the largest amount of hands is that of tailors and workers in ready made articles of clothing. In this branch of industry

alone, the recent statistics prove 100,000 out of 360,000 working men and women to be engaged.

NEW JERSEY STATE PRISON.—We learn that there are now confined in the State Penitentiary at Trenton 350 convicts. In many of the cells three prisoners are put together, and some far-seeing newspaper observes, that unless the prison premises are enlarged, there is danger that the *separate system*, which the law requires to be carried out in the prison, will have to be abandoned! If a man was as near being dead as the separate system is to being violated there, most doctors would give him up.

CONSTITUTION
OF THE
Philadelphia Society for Alleviating the Miseries
of Public Prisons.

When we consider that the obligations of benevolence which are founded on the precepts and examples of the Author of Christianity, are not cancelled by the follies or crimes of our fellow-creatures; and when we reflect upon the miseries which penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt, (the usual attendants of prisons,) involve with them, it becomes us to extend our compassion to that part of mankind, who are the subjects of those miseries. By the aid of humanity, their undue and illegal sufferings may be prevented; the links which should bind the whole family of mankind together, under all circumstances, be preserved unbroken; and such degrees and modes of punishment may be discovered and suggested, as may, instead of continuing habits of vice, become the means of restoring our fellow-creatures to virtue and happiness. From a conviction of the truth and obligation of these principles, the subscribers have associated themselves under the title of “THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES OF PUBLIC PRISONS.”

For effecting these purposes, they have adopted the following CONSTITUTION.

ARTICLE I.

The Officers of the Society shall consist of a President, two Vice-Presidents, two Secretaries, a Treasurer, two Counsellors, and an acting Committee; all of whom shall be chosen at the stated meeting to be held in the first month (January) of each year, and shall continue in office until their successors are elected; but in case an election from any cause shall not be then held, it shall be the duty of the President to call a special meeting of the Society within thirty days, for the purpose of holding such election, of which at least three days' notice shall be given.

ARTICLE II.

The President shall preside in all meetings, and subscribe all public acts of the Society. He may call special meetings whenever he may deem it expedient; and shall do so when requested in writing by five members. In his absence, one of the Vice-Presidents may act in his place.

ARTICLE III.

The Secretaries shall keep fair records of the proceedings of the Society, and shall conduct its correspondence.

ARTICLE IV.

The Treasurer shall keep the moneys and securities, and pay all orders of the Society or of the Acting Committee, signed by the presiding officer and Secretary; and shall present a statement of the condition of the finances of the Society at each stated meeting thereof.

ARTICLE V.

The Acting Committee shall consist of the officers of the Society, *ex-officio*, and thirty-eight other members. They shall visit the prison at least twice a month, inquire into the circumstances of the prisoners, and report such abuses as they shall discover, to the proper officers appointed to remedy them. They shall examine the influence of confinement on the morals of the prisoners. They shall keep regular minutes of their proceedings, which shall be submitted at every stated meeting of the Society; and shall be authorized to fill vacancies occurring in their own body. They shall also have the sole power of electing new members.

ARTICLE VI.

Candidates for membership may be proposed at any meeting of the Society or of the Acting Committee; but no election shall take place within ten days after such nomination. Each member shall pay an annual contribution of two dollars; but the payment of twenty dollars at any one time shall constitute a life membership.

ARTICLE VII.

Honorary members may be elected at such times as the Society may deem expedient.

ARTICLE VIII.

The Society shall hold stated meetings on the second third-day in the months called January, April, July and October, of whom seven shall constitute a quorum.

ARTICLE IX.

No alterations of the Constitution shall be made, unless the same shall have been proposed at a stated meeting of the Society held no less than a month previous to the adoption of such alterations. All questions shall be decided where there is a division, by a majority of votes; in those where the Society is equally divided, the presiding officer shall have the casting vote.

PENNSYLVANIA JOURNAL OF PRISON DISCIPLINE.

This is a sterling Quarterly, edited with much good sense, kindness and tact. It vindicates the policy of solitary confinement, and is generally on the right side. It brings forth "things new and old," belabors empiricism, looks upon man in his true condition of sin and misery, and seeks righteous measures for his reformation. We have always admired the self-relying sedateness and ingenious ability with which the Editor opens his battery, offensive and defensive; and he commands a long range and uses unerring projectiles. A wide field is opened for usefulness in the department of Prison Discipline for men of sense and religion; and we are glad that there is a valuable Quarterly set for the defence of the truth.—*Pres. Mag.*

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Dr. Geo. H. Burgin,
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☞ Mr. W. J. MULLEN is agent of the County Prison, appointed by the Inspectors, and acting under their direction.

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1. Moved the beginning of the [Constitution](#) to just before its continuation.
2. Silently corrected obvious typographical errors and variations in spelling.
3. Retained archaic, non-standard, and uncertain spellings as printed.

*** END OF THE PROJECT GUTENBERG EBOOK THE JOURNAL OF
PRISON DISCIPLINE AND PHILANTHROPY (VOL. XV, NO. I,
JANUARY 1860) ***

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